

		sealed contain confidential attorney-client privileged information, and a substantial probability exists that the overriding interest will be prejudiced if the records at issue are not sealed. Further, the proposed sealing is narrowly tailored, and there are no less restrictive means to achieve the overriding interest in protecting the information aside from sealing the records. (Cal. Rules of Court, rule 2.550(d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.) Counsel for Plaintiff shall give notice of this ruling.
11	Joseph v. Bell	Before the Court is a demurrer filed by defendants David Bell, DDS, M.D; David Bell, MD, Inc. and Orthognathic Surgery (Defendants) to the first amended complaint (FAC) of plaintiff Daniel Joseph (Plaintiff). For the reasons set forth below, the demurrer is OVERRULED. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code of Civ. Proc. § 430.10, subd. (e).) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (<i>C.A. v. William S. Hart Union High School Dist.</i> (2012) 53 Cal.4th 861, 872.) Plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. (<i>Hacker v. Homeward Residential, Inc.</i> (2018) 26 Cal.App.5th 270, 280.) Where allegations are subject to different reasonable interpretations, the court must draw inferences favorable to the plaintiff, not the defendant. (<i>Perez v. Golden Empire Transit Dist.</i> (2012) 209 Cal. App.4th 1228, 1238.) <u>1st cause of action (breach of contract)</u>: The complaint states facts sufficient to constitute this cause of action. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements]; see also FAC ¶¶ 31-35.) The Court rejects Defendants' argument that the FAC fails to allege Defendants "clearly promise[d] a particular result." While Plaintiff alleges facts suggesting Defendants provided sub-standard care in the hardware removal surgery, the crux of Plaintiff's breach of contract claim is Defendants' alleged failure to perform the orthognathic surgery at all. Notably, a general demurrer does not lie to only part of a cause of action. If there are sufficient allegations to entitle plaintiff to relief, other allegations cannot be challenged by general demurrer. (<i>Daniels v. Select Portfolio Servicing, Inc.</i> (2016) 246 Cal.App.4th 1150, 1167.) The demurrer is therefore OVERRULED as to this cause of action. <u>2nd cause of action (breach of implied covenant of good faith and fair dealing)</u>: The complaint states facts sufficient to constitute this cause of action. (<i>Carma Developers (Cal.), Inc. v. Marathon Dev't California, Inc.</i> (1992) 2 Cal.4th 342, 371 [elements]; see also FAC ¶ 38.) Defendants improperly dispute Plaintiff's allegations and rely on extrinsic evidence outside the four corners of the pleading. The demurrer is therefore OVERRULED as to this cause of action.